

Meeting the Challenges of Proving Delay in Construction Disputes



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Top 4 Challenges to Proving Delay

- Understanding your rights of recovery
- Initial response when event occurs
- Distinguishing and isolating the impact of loss
- Presentation of the claim



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Understanding Your Rights of Recovery

- Establish the coverage being triggered, if any
- Notice appropriate parties in a timely manner
- Prime and subcontract considerations



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Initial Response When Event Occurs

- General Contractor Considerations
- Insurance Carrier Considerations
- Legal Counsel Considerations



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Distinguish and Isolate the Impact of Loss

- Discuss potential costs early
- Develop plan to document and explain
- Address potential conflicts (i.e., concurrency)



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Presentation of the Claim



- Provide detailed explanations for all costs:
 - ☐ Calculation of schedule delays with corresponding documentation
 - ☐ Narrative of how the delay impacts overlap with existing issues (e.g., BR event and an existing Subcontractor default issue)
 - ☐ Detailed documentation from subcontractors/vendors regarding requested compensation for delays and cost impacts as a result of the event



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Presentation of the Claim continued

- Verify the quality of the evidence being used
 - ☐ Ensure documents such as daily reports, correspondence, T&M tickets, photos and other contemporaneous evidence clearly support the claim
- Accuracy of prepared claim costs
 - ☐ Consider dedicated internal resources beyond the project team, as well as 3rd party claims support for major claims



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